

Damages Assessment

1208 Pasture View Drive, Hanahan, SC 29410

Background

Greg Cate purchased the lot at 1208 Pasture View Drive from Ethan Henry. Mr. Henry acquired the lot in July 2024 for \$180,000 without a dock permit, then listed it at \$395,000 with "dock permit pending." Mr. Cate closed at \$300,000. The purchase was explicitly contingent on the approved dock permit—the ability to build a private dock was the single driving factor behind the acquisition.

The dock permit (SAC-2025-00997) was obtained through a notarized SCDES Affidavit of Ownership signed by Mr. Henry, certifying the proposed dock would not cross property owned by other parties. The surveyor's own drawings—submitted in the same application package, one minute apart—clearly show the 697-foot walkway crossing property owned by Wrenn Real Estate Investments LLC (TMS 259-00-00-014). The permit is not buildable as approved.

Mr. Cate has invested approximately \$200,000 in foundation and site work and the completed home will have a finished value of approximately \$1,300,000. The entire design was conceived around private water access and a protected marsh view.

Position

If Mr. Henry is able to deliver a valid, buildable dock permit—whether by curing the encroachment, obtaining a legitimate easement from Wrenn Real Estate Investments, or otherwise—this matter can be resolved without further action. If he cannot, the following damages will be pursued.

Itemized Damages

Category	Description	Estimated Range
Lot Purchase Premium	Difference between the price paid (\$300,000) and the lot's value without a dock permit. Mr. Henry's own purchase at \$180,000 without a permit establishes the baseline.	\$120,000 – \$150,000
Loss of Protected Marsh View	The 697-foot easement corridor functioned as a buffer preserving the water sightline. Without it, the adjacent parcel can be developed or obstructed. On a \$1.3M finished home, a protected water view represents 20–30% of total value.	\$300,000 – \$400,000
Long-Term Resale Differential	A dockable waterfront home at this price point appreciates at a materially higher rate than a non-dockable property. Over a 10–20 year horizon, the gap between a \$1.3M dockable home and its non-dockable equivalent is substantial. Presented here as discounted present value.	\$350,000 – \$550,000

Category	Description	Estimated Range
Loss of Use and Enjoyment	The property was purchased to provide the family with private water access for fishing, crabbing, and boating—a lifestyle that was the entire purpose of the investment. Every season without a dock is irreplaceable. Estimated annually, from closing through resolution.	\$20,000 – \$30,000/yr
Carrying Costs on Premium	Interest, property taxes, and insurance paid on the \$120,000+ in excess value that does not exist without a dock permit. The county assessment likely assumes dock access, resulting in ongoing tax overpayment.	\$10,000 – \$14,000/yr
Attorney's Fees & Costs	Legal fees incurred to date and projected through resolution, including appraisers and expert witnesses. Recoverable under fraud and willful misrepresentation claims in South Carolina.	\$25,000 – \$75,000
Total Estimated Damages Range		\$600,000 – \$950,000+

Additional Considerations

Title Insurance Claim. A parallel claim under the title insurance policy is being evaluated and may provide an independent recovery path.

Palmetto Land Surveying. As the authorized agent of record who submitted directly contradictory documents to SCDES in back-to-back uploads, the surveying firm's professional liability exposure is substantial and represents an additional source of recovery.

Punitive Damages. South Carolina permits punitive damages in cases involving fraud and willful misrepresentation. A notarized false affidavit, signed two days after receiving a contingent offer, for the purpose of closing a sale at a \$120,000+ premium, presents a compelling case for punitive damages—which are not capped in most South Carolina cases. These are not included in the estimates above.

This summary is provided to facilitate resolution. Mr. Cate's strong preference is to resolve this matter without litigation. If Mr. Henry can deliver what was promised—a valid, buildable dock permit—no further action is necessary. If he cannot, Mr. Cate is prepared to pursue the full scope of damages outlined above.